

Draft Section M: Evaluation Factors for Award

M 1.0 BASIS FOR CONTRACT AWARD- SPAIN BASE OPERATING SUPPORT

M 1.1 General. This is a competitive, best value source selection conducted in accordance with Federal Acquisition Regulation (FAR) Part 15, as supplemented. The Government intends to award a single Firm-Fixed-Price (FFP) Indefinite Delivery Indefinite Quantity (IDIQ) contract to the responsible Offeror whose proposal, conforming to the solicitation, is determined to represent the best value to the Government, price and other factors considered.

M 1.2 Best Value Tradeoff. The Government will use a subjective tradeoff process. The source selection will begin with a pass/fail evaluation of the Past Performance factor. Only those proposals receiving an "Acceptable" rating for Past Performance will be further considered for award. For all proposals deemed acceptable under Past Performance, the Government will then conduct a tradeoff between the Technical factor and the Price factor.

M 1.3 Relative Order of Importance. The Technical factor is considered significantly more important than Price. The Government is willing to pay a higher price for a technically superior proposal, provided the price is determined to be fair and reasonable. However, the Government reserves the right to award to a lower-priced, lower-rated technical proposal if it is determined to provide the best value. As the non-price factors become more equal among competing proposals, the importance of Price will increase.

M 2.0 EVALUATION FACTORS

The evaluation factors are Past Performance, Technical, and Price.

M 3.0 FACTOR 1 - PAST PERFORMANCE

M 3.1 General. The Government will conduct a past performance evaluation on a basis of acceptable or unacceptable to determine the degree of confidence in an Offeror's ability to successfully perform the requirements of this solicitation. To be determined "Acceptable," an Offeror must submit a minimum of two (2), and a maximum of five (5), recent and relevant contract references.

M 3.2 Evaluation Process. The past performance evaluation begins with the criteria of recency. If a submitted contract reference is not recent, it will not be reviewed further. All recent contracts will then be evaluated for relevancy. Only those contracts deemed recent and relevant will be further evaluated to assess the quality of the Offeror's performance.

M 3.3 Sources of Information. The Government may use data provided by the Offeror but is not limited to that data. The Government may also use past performance information obtained from any other sources, including, but not limited to, the Contractor Performance Assessment Reporting System (CPARS), public information, and interviews with Program Managers, Contracting Officer Representatives, and Contracting Officers.

M 3.4 Recency. A contract reference will be considered recent if the effort is currently ongoing, or if it was completed within the last five (5) years from the date of this solicitation's issuance.

M 3.5 Relevancy. A contract reference will be considered relevant if it demonstrates experience of a similar size, scope, and complexity to the requirement described in this solicitation. To be considered relevant, a contract must meet, at a minimum, the criteria in paragraphs (a), (b), and (c) below.

(a) Size/Magnitude: The referenced contract effort must have an average annual funded value of \$20 Million or more. For Indefinite Delivery Indefinite Quantity (IDIQ) contracts or similar ordering vehicles, the Government will evaluate the size and scope of the individual Task Order(s) submitted, not the overall ceiling value of the parent contract.

(b) Scope and Complexity: The contract must demonstrate experience as a prime contractor performing a multi-function Base Operations Support (BOS) or similar support contract, including experience with Management of Civil Engineer and Logistics functions; Facility and infrastructure maintenance; and managing a unionized workforce of at least 200 direct employees.

(c) OCONUS Experience: At least one (1) of the relevant contract references must demonstrate the Offeror's experience performing services as a prime contractor at a major OCONUS installation. A "major OCONUS installation" is defined as a single site meeting at least two (2) of the following three criteria: (1) supported a population of 1,500 or more personnel; (2) encompassed a portfolio of at least 75 facilities; or (3) provided direct support to a mission requiring 24/7 emergency response capabilities.

M 3.6 Current Performance Requirement. To be eligible for an "Acceptable" rating, at least one (1) of the submitted recent and relevant contract references must be ongoing at the time of proposal submission.

M 3.7 Joint Ventures (JVs). An Offeror proposing as a Joint Venture may satisfy the past performance requirements by submitting relevant contract references from its individual member companies. To be considered Acceptable, a JV's proposal must meet the following three conditions:

(a) A detailed Management and Integration Plan that includes at a minimum: a copy of the signed JV Operating Agreement, a clear organizational chart identifying the Managing Partner, and a matrix assigning PWS functions to the partner with relevant corporate experience.

(b) The Management Plan must identify which partner firm has primary responsibility for Union Relations and demonstrates, through a submitted past performance reference, that this partner has prior experience managing a unionized workforce in an OCONUS environment.

(c) A Key Personnel Plan that includes detailed position descriptions and minimum qualification requirements for, at a minimum, the Program Manager, Quality Control Manager, and the Site Lead for Morón.

M 3.8 Definition and Assessment of Performance Quality. For all contract references determined to be recent and relevant, the Government will assess the quality of performance. The Government's assessment will be based on the official ratings and narrative feedback contained in CPARS reports and/or returned Past Performance Questionnaires (PPQs).

(a) **Definition of Acceptable Performance:** A pattern of acceptable performance is defined as a record of receiving ratings of 'Satisfactory' or higher in the key evaluation areas of Quality, Schedule, Cost Control, and Management.

(b) **Assessment of Negative Information:** A rating of 'Marginal' or 'Unsatisfactory' on a recent and relevant contract may result in an overall "Unacceptable" rating. The Government will consider the number, severity, and recency of any negative ratings, as well as the effectiveness of any corrective actions taken by the Offeror.

M 3.9 Overall Confidence Rating. Based on the entirety of the offeror's past performance record, the Source Selection Authority (SSA) will assign one of the following ratings. To be eligible for further consideration for award, an Offeror must receive an 'Acceptable' rating. An Offeror that receives a rating of 'Unacceptable' or 'Neutral/Unknown' will be considered ineligible for award.

(a) **Acceptable:** Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.

(b) **Unacceptable:** Based on the Offeror's performance record, the Government does not have a reasonable expectation of successful performance.

M 4.0 FACTOR 2 - TECHNICAL

M 4.1 General. The Technical factor evaluates the Offeror's proposed approach to meeting the requirements of the Performance Work Statement (PWS). The Technical factor is comprised of two subfactors: **Subfactor 1 - Program Leadership/Staffing & Continuity**, and **Subfactor 2 - Performance Oversight & Technology**.

M 4.2 Technical Rating Method. The following adjectival ratings will be used for evaluating the qualitative elements of the technical factor:

- (a) Outstanding:** Proposal indicates an exceptional approach and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.
- (b) Good** Proposal indicates a thorough approach and understanding. Strengths outweigh weaknesses. Risk of unsuccessful performance is low.
- (c) Acceptable:** Proposal indicates an adequate approach and understanding. Risk of unsuccessful performance is moderate
- (d) Marginal:** Proposal has weaknesses not offset by strengths. Risk of unsuccessful performance is high.
- (e) Unacceptable:** Proposal is unrealistic or demonstrates a lack of understanding. Risk of unsuccessful performance is very high.

M 4.3 Subfactor 1: Program Leadership/Staffing & Continuity. The Government will evaluate the Offeror's approach to staffing, managing, and sustaining a capable workforce to ensure successful performance. This subfactor is comprised of the following four elements, which will be evaluated as described below.

(a) Element 1: Staffing Plan (Adjectival Rating). The Government will evaluate the Offeror's proposed Staffing Plan for its realism and efficiency. The evaluation will assess whether the proposed Full-Time Equivalents (FTEs) for each PWS function are appropriate for the Government's workload and demonstrate a clear understanding of the requirement. To be considered acceptable, the Offeror's proposal must include a detailed Staffing Plan and a supporting Basis of Estimate (BOE). The BOE must clearly describe the Offeror's methodology for calculating the proposed FTEs for each major PWS function. At a minimum, this methodology must include:

1. The specific Planning Factors (e.g., labor hours per task) used to convert the Government's workload into total required labor hours.
2. The calculation of the Productive Hours per FTE, showing how the Offeror accounted for all non-productive time, including host nation holidays, vacation, leave, and training.
3. The final calculation showing how the total required labor hours were divided by the productive hours to arrive at the proposed FTE count.

The Government will evaluate the realism of the proposed Planning Factors and the calculation of Productive Hours. Proposals with unrealistic or unsubstantiated staffing estimates that create performance risk may be rated as Marginal or Unacceptable. Proposals that demonstrate innovative efficiencies in their staffing approach without increasing risk may receive a higher rating.

(b) Element 2: Phase-In Plan (Pass/Fail). The Government will evaluate the Offeror's proposed Phase-In Plan for acceptability. The Government has established a ninety (90) day phase-in period for this contract. To be rated "Acceptable," the Offeror's plan must be a complete and logical project plan that demonstrates a clear understanding of the transition requirements and presents a credible approach to assuming full performance responsibility with no degradation of services by Day 91. The plan must, at a minimum, include a detailed schedule and narrative addressing the key transition activities, including:

1. Operational Stand-Up (local business registration, banking)
2. Leadership Onboarding
3. Incumbent Workforce Capture and In-Processing
4. GFP and Historical Data Transfer
5. Supply Chain Transition

(c) Element 3: Key Personnel Continuity Plan (Adjectival Rating). The Government will evaluate the Offeror's proposed Key Personnel Continuity Plan to assess the credibility and effectiveness of their approach to minimizing vacancies in essential positions. The evaluation will focus on the three distinct areas below. The overall adjectival rating will be based on a holistic assessment of the strengths and weaknesses identified in each area.

1. **Retention Strategy:** The plan must describe specific, proactive strategies the Offeror will use to retain key personnel. The Government will evaluate the degree to which these strategies (e.g., professional development, incentive programs, defined career progression) are well-defined and likely to foster a stable leadership team.
2. **Recruitment and Talent Pipelining:** The plan must describe the Offeror's process for rapidly sourcing and vetting qualified candidates. Greater consideration and a higher rating will be given to proposals that demonstrate a robust and proactive strategy for identifying and pre-screening potential replacement candidates *before* a vacancy occurs. This could include

maintaining a corporate "bench" of qualified personnel, establishing relationships with specialized recruitment firms, or other innovative methods.

(d) Element 4: Union Labor Management Plan (SPAIN) (Pass/Fail). The Government will evaluate the Offeror's plan for managing the unionized workforce in Spain. To be rated "Acceptable," the Offeror must submit a clear and comprehensive plan that demonstrates a thorough understanding of the controlling Spanish Collective Labor Agreement (CLA) and the legal framework, including Article 44 of the Spanish Workers' Statute. This plan shall be incorporated into the contract upon award.

The plan must, at a minimum, address the following specific elements:

1. **Collective Bargaining Strategy:** The Offeror's proposed strategy and approach for successfully conducting the biennial CLA renegotiations as the lead employer. This shall include the Offeror's process for developing its bargaining position and its plan for utilizing qualified local legal counsel for advisory support.
2. **Labor Relations Approach:** The Offeror's procedures for formal engagement with union leadership and for managing the day-to-day workforce in compliance with the terms of the CLA
3. **Grievance and Dispute Resolution:** The Offeror's internal step-by-step process for receiving, investigating, and resolving employee grievances in accordance with the timelines and procedures mandated by the CLA. This must identify the internal roles and responsibilities for each step of the process.
4. **High-Risk Scenario Management:** To demonstrate a thorough understanding of the operational impacts of the CLA and Spanish Labor Law, the Offeror's plan must describe their step-by-step process for executing the following two scenarios:
 - i. **Reduction in Force:** the Offeror's plan must describe their step-by-step process for executing a Contractor-initiated Reduction in Force for the purpose of achieving efficiencies. The narrative must demonstrate an understanding of the legal requirements for third-party analysis, union consultation, and severance obligations associated with a "collective dismissal"
 - ii. **Termination for Cause:** The process the Offeror would follow to terminate an employee for a serious infraction or poor performance. This must include a description of the progressive disciplinary steps, the formal notification

requirements to the employee and union representatives, and an understanding of what constitutes "procedente" (justified) versus "improcedente" (unjustified) dismissal under Spanish law.

A plan that fails to credibly address all of these minimum elements will be rated "Unacceptable." An "Unacceptable" rating for this element will render the proposal ineligible for award.